

18. S-PR-0014062 In Re the Estate of Burgard, Douglas

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

19. S-PR-0014065 In Re the Estate of Voyles, Sandra Kay

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. Despite any terminology used by the clerk, no July 10 hearing has or will be heard. Notice for a hearing that did not and will not occur is not notice of hearing and Prob.C. § 1205 does not yet apply. New notice, service, and publication are needed. Court determination is needed as to petitioner's request to be excused from new notice, service, and publication.

20. S-PR-0014067 In Re the Alice B. Bowles Trust

Appearance is required for hearing on petition to interpret trust terms, appoint successor trustee, and for other relief.

Clarification is needed: petitioner alleges Barbara Porter and Keith Porter are or were two interested relatives of settlor, without describing any relationship between settlor and the Porters. Further, although petitioner alleges Keith Porter died approximately 40 years ago, notice was sent to a Keith Porter without explanation.

If the foregoing issue(s) are clarified to the court's satisfaction, the following additional calendar notes are provided:

The requested trust interpretation as to the share for Timothy McClean is contrary to the terms of the trust. The trust share for Timothy McClean vested immediately upon settlor's death because Timothy survived; it now passes to his estate. Petitioner offers no legal or factual basis for distribution other than to Timothy's estate.

The requested trust interpretation as to the share for Paul McClean is consonant with the trust's direction that his failure survive causes his share to pass to his surviving spouse.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are offered to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.